

**INVESTMENT RETRIEVERS, INC. v. GERARD DISU**  
**Case No. FCM149129**

**Motion to Vacate or Set Aside Judgment**

**TENTATIVE RULING:**

Defendant's motion to vacate the judgment in this collections matter is DENIED.

Defendant's motion is untimely. Defendant knew of this 2016 judgment no later than 2017 when his bank account was levied and in 2017 when he filed a claim of exemption which included his hand-written explanation why he should be exempt from collection.

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**ELSA FERNANDEZ v. FCA US LLC; DODGE CHRYLSER JEEP RAM OF**  
**VACAVILLE**  
**Case No. CU23-02659**

**Trial Management Conference**

**TENTATIVE RULING:**

*Parties to appear. Per the trial management conference orders, trial counsel shall appear. No remote appearances are authorized.*

**Plaintiff's Trial Management Conference Statement**

It appears that Plaintiff's counsel is unaware of Local Rule 4.10 which identifies the mandatory requirements of a trial management conference statement. This rule is expressly referenced in the court's trial management conference order dated March 12, 2026. Plaintiff appears to rely on boiler-plate motions in limine filed in December 2025. No exhibit list, no witness list, no proposed jury instructions and no proposed jury verdict form is presented. The court questions whether Plaintiff is prepared for trial.

Plaintiff is ordered to show cause why Plaintiff should not be sanctioned up to \$1,000 and/or precluded from presenting any witness other than Plaintiff or any exhibit not identified by a timely filed exhibit list due to the failure to comply with this court's trial management order.

| <b>Plaintiff's Motions in Limine</b>   |                                                                                                                                                                                                    |
|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| MIL 1: Exclude settlement discussions. | Department 8's trial management order expressly identifies this motion in limine as unnecessary. The court's standard trial orders exclude evidence of settlement discussions. (TMC Order 4.b.ii.) |